



Thank you for your interest in the role of Attorney General's Senior Treasury Counsel (Civil) to the Crown.

General Background

The Attorney General maintains panels of junior Counsel to undertake civil, EU, and public international work for all government departments. In addition, the Attorney General appoints a Senior Treasury Counsel and the First Treasury Counsel (FTC).

The FTC is the Government's primary advocate in civil litigation affecting the Crown, handling matters of unparalleled variety, interest, and public importance. The appointment currently requires that the FTC will exclusively undertake government work for the duration of their appointment.

Following a review of the current operating model, the Attorney General has decided to appoint a new small group of King's Counsel (KCs), to be known as the Senior Treasury Counsel (Civil) Group. In addition to acting on behalf of government in significant cases, members of the group will have a key role in assisting the Attorney General, working alongside the FTC and senior lawyers in the Government Legal Profession, in monitoring and guiding the strategic management of the Government's most significant civil litigation and cross cutting legal issues. This initiative accompanies proposed changes to the role of the FTC, primarily by relaxing the current requirement that the postholder undertakes work exclusively for the Government. This presents an exciting opportunity to be involved in a new approach to the strategic management of the Government's civil litigation and most significant cross cutting legal issues.

These changes aim to build greater resilience and opportunities for sharing expertise, enabling enhanced strategic oversight over key matters. Working collaboratively as a team the group will play a crucial role in providing legal leadership to other Counsel undertaking work for the Government.

Changes to First Treasury Counsel role

The current FTC, Sir James Eadie KC, will continue in his role. However, with the establishment of the Senior Treasury Counsel (Civil) Group (STCG), the exclusivity requirement will be removed. Instead, there will be a commitment that government work will broadly account for around 50% of his practice. Given the nature of the role and the access to sensitive information it will necessarily afford, for the duration of his appointment, the Government would regard the acceptance by the FTC of instructions to undertake work against central government as potentially giving rise to a conflict of interest requiring the prior approval of the Treasury Solicitor. These new terms of appointment will apply for 2 years, with the option of extension.

Senior Treasury Counsel (Civil) Group

The STCG will consist of a small group of KCs, who will work closely and effectively as part of a team in proactively tracking cases, sharing best practice and providing advice on the defence of the Government's strategic interests. The FTC will remain the Government's most senior advocate, but members of the STCG will be instructed on matters that may previously have been reserved for the FTC. It is expected that this group will meet regularly with the FTC, Treasury Solicitor, and senior Government Legal Profession colleagues to discuss key cases and issues, as well as periodically with the Attorney General.

The STCG will share responsibility with the FTC in coordinating and providing strategic direction on the most significant litigation affecting the Government, shaping the way the Government handles its litigation and, consequently, influencing the development of civil law. Other Counsel, including other KCs, will naturally continue to be instructed across the many and varied cases against government. This role therefore additionally involves providing legal leadership to other experienced Counsel where relevant, as well as leading a team of Counsel on instructed matters. The STCG will also play a crucial role in providing legal leadership to the Attorney General's Civil Panel Counsel, supporting the Treasury Solicitor in monitoring and developing the performance of junior panel Counsel. We seek KCs with a vision for how the group could operate and a clear understanding of the value they could individually bring to it.

Subject to any necessary transitional arrangements, STCG members will be expected to make available the time necessary to perform their new role and to prioritise and be available for government work. They will be expected to undertake work at short notice and/or under significant time pressure, subject to other professional commitments.

Given the nature of the role and the access to sensitive information it will necessarily afford, for the duration of their appointments, the Government would regard the acceptance by members of the STCG of instructions to undertake work against central government as potentially giving rise to a conflict of interest requiring the prior approval of the Treasury Solicitor.

While candidates need not be based in London, there must be a clear commitment to travelling as required, frequently at short notice and for potentially extended periods.

Successful candidates will be expected to undergo and secure Developed Vetting (DV) clearance.

Members of the STCG will be paid at the rate of £270 per hour on cases on which they are instructed, unless a higher rate has previously been approved by the Attorney General in which case

that higher rate will continue. This rate will be reviewed every two years to determine whether a rate increase is warranted. An annual fee of £15,000 will also be paid to reflect the additional work, beyond leading on specific cases, that the posts require. This element of the fee will be reviewed after 12 months.

Eligibility

Appointment to the STCG is open to barristers or solicitors (with relevant Higher Court Advocacy qualifications) who have been appointed as King's Counsel with regular advocacy experience and can demonstrate:

1. Experience in handling, including as a leader, a variety of large, complex and high-profile cases, with the capacity to manage competing and demanding deadlines.
2. Evidence of sound judgement, speed of thought and an ability to grasp and react swiftly to points.
3. Ability to provide first class legal advice on legal, procedural and evidential issues in a timely manner.
4. Strong advocacy skills, both written and oral.
5. Demonstrable experience in at least one of the areas of public and constitutional law; public international law or private law.
6. Significant experience in collaborating with a range of Counsel and in-house legal teams on matters of substantial importance, and in co-ordinating litigation which impacts across a range of client interests.
7. A demonstrable commitment to diversity and inclusion, including the development of diverse talent.

Desirable criteria:

1. Demonstrable experience in one of more of the following areas of law:
 - Immigration/Asylum/Nationality Law
 - National Security
 - Human Rights
 - Planning/Environmental
 - EU Law

2. Experience of working collaboratively with the Government Legal Profession on matters for the Government.

Terms and Conditions

Details will be discussed prior to appointment. However, in addition to points outlined above, candidates should be aware that:

- STCG members must have dedicated administrative support within their chambers/office able to support a busy and varied practice as an STCG member.
- STCG will not be subject to the provisions of employment law by virtue of this appointment and will not become a member of the Civil Service.
- Different lengths of appointment will be available, subject to agreement between the candidate and the Attorney General. Any appointment will be for a specified length with the option to renew, subject to the agreement of the Attorney General.
- A period of 3 months' notice will be required if an STCG member wishes to leave prior to completion of their period of appointment, unless otherwise agreed.

Application

If you are interested in this high-profile and important role, please download and complete the application form which will require you to include:

- An outline of your experience, skills and expertise, in accordance with the criteria set out in the eligibility section on page 3, limited to an overall word count of 1500 words
- A synopsis of the significant cases in which you have appeared in the last three - five years of active practice. Do not feel constrained to restrict your list to this period if you were absent from the Bar for all or any part of this period or you do not think that such a list would, in general, be representative of your practice but please do provide an explanation for this. Your synopsis should highlight any unusual or particularly difficult/complex issues and specify the court or tribunal and the name of the Judge(s).

Completed forms must be submitted via Gatenby Sanderson using this [link](#) in **Word format**, no later than **12:00 Midday on 3 July 2025**.

Applications submitted other than via Gatenby Sanderson will not be accepted.

Equality and Diversity Monitoring Form

All applicants applying for an STCG post must complete an Equality and Diversity Monitoring Questionnaire. Please **complete the form** and send it in together with your application form (in **Word format** please).

The Attorney General will appoint the advocates who appear to be best qualified regardless of age, disability, sex, gender reassignment, marital and civil partnership status, pregnancy and maternity, race, religion and belief, or sexual orientation. Women, members of ethnic minorities and those with disabilities are particularly encouraged to apply.

Completing the form will help us in our work to make the range of applications to the group truly reflective of all those who might be eligible to apply.

The information you provide will be treated in total confidence. The equality and diversity questionnaire will be kept separate from your application form and will not be seen by anyone involved in assessing your application or selecting the group members. The information will only be used to compile anonymous statistics during the recruitment exercise, and retained only if you are appointed, again for statistical purposes regarding the composition of the group.

For details of how we handle your data please see our privacy notice [Privacy Notice](#)

Selection

Applications will be shortlisted, and only shortlisted candidates will be invited to an interview at 102 Petty France, London. Interviews will take place during w/c 21 and 28 July 2025. If that date presents any difficulties, please let us know.

Shortlisted applicants will be provided with information about the interview process.

Candidates who are not shortlisted will not receive feedback. Candidates who are unsuccessful at interview stage will be able to receive feedback on request.

Closing Date	3 July 2025 12:00 Midday
Shortlist	w/c 7 July 2025
Interviews	w/c 21/28 July 2025
Appointments take effect	September 2025

Information Security

Those government departments that make use of the panels take information security very seriously. Successful applicants will be expected to safeguard government information in their possession, to adhere to government information security requirements and to complete various questionnaires regarding compliance with those requirements during their membership of the panels.

Contact address for queries

If you have any queries about the process or would like to discuss your application, please feel free to contact Jule.Myers@gatenby-sanderson.com.

12 June 2025